**IN THE SUPREME COURT OF INDIA**

**CIVIL APPELLATE JURISDICTION**

**SPECIAL LEAVE PETITION (CIVIL) No. OF 2011**

IN THE MATTER OF:

Smt. N. Manjula and another Petitioners

Versus

The Bruhath Bangalore Mahanagara Palika and another Respondents

**AFFIDAVIT VERIFYING THE SPECIAL LEAVE PETITION**

I, N. Manjula, aged 53 years, wife of late B.C. Subramanyam, residing at Door No. 282, 14th Cross, Chenngaya Layout, Thyagarajanagar, Bangalore – 560 028, do hereby solemnly affirm and state on oath as follows:-

1. I am the 1st petitioner in the present Special Leave Petition and I am fully conversant with the facts of the case. I am swearing to this affidavit on behalf of the other petitioner also, being authorised by her in this behalf .

2. The contents of the Synopsis and the List of Dates (pages ) the Special Leave Petition paras 1 to 8 and the I.As respectively have been read by me carefully and I have understood the same, I state that the facts which have been stated therein are true to

my knowledge; and no part of it is false; and nothing material has been concealed therefrom.

3. The annexures filed with the Special Leave Petition are all true copies of their respective originals.

Verified at Bangalore on the 9th May 2011.

DEPONENT

No.of corrections

Identified by me

Advocate

## SYNOPSIS AND LIST OF DATES

This Special Leave Petition raises important questions of law as to whether, in the given facts, circumstances and situation of the case the petitioners who have been wronged by the authorities of the State should be driven to the necessity of vindicating their rights and remedies only through a civil court by instituting a civil suit in that regard when, the most efficacious, expedient, less expensive remedy under the writ jurisdiction of the High Court could be availed by her and particularly when they had actually invoked the said extra-ordinary jurisdiction in the peculiar facts and circumstances of the case where they have been subjected to a total negation of justice and deprivation of their fundamental rights under Articles 14, 19, 21, 31A and 300 A of the Constitution of India.

The petitioners are the widow and daughter respectively of a certain B.C. Subramanya s/o. late Chengaiah (since deceased). Under a Registered Partition Deed dated 6.11.1969 executed amongst the members of the deceased Chengaiah – father of late B.C. Subramanya, the latter inherited the lands bearing Survey Nos. 33/2B, 33/3, 33/4 and 33/5 of the erstwhile Yediyur Nagasandra Village in Bangalore South Taluk of Bangalore Urban District. Thereupon B.C. Subramanya (since deceased) had instituted a suit in O.S. No.777/1993 in the Court of the learned 15th Additional City Civil Judge, Bangalore, praying for a decree of permanent prohibitory injunction against the Bangalore Development Authority (the BDA for short) contending that the said respondent which acquired certain portion of the lands mentioned above for the purpose of formation of a road thereon and for development of the then Banashankari 2nd Stage

Residential Layout has not notified or acquired the remaining extent of land comprised in the aforementioned survey numbers and that the said lands always had remained in the lawful possession of the said B.C. Subramanya and the other lawful owners thereof. B.C. Subramanya had further pleaded in the aforementioned suit instituted by him on 30.1.1993 that he and his brother having constructed shops and a Shopping Complex on the Northern side of the property in the year 1979 itself and that the said lands having remained in their lawful possession and enjoyment althrough, the officials attached to the BDA had illegally attempted in the month of November 1992 to effect demolition of the structures that had been so put up. Therefore, he had contended that he had been driven to the necessity of filing yet another original suit in O.S. No.413/1993 against the BDA and that an interim order against demolition of the then existing structures had been granted in the said suit. He had further contended in the said suit that despite the continued operation of the interim order that had been so granted in O.S. No.413/1993, a certain Sri. M. Narayan, the then junior engineer attached to the 1st respondent-Corporation did effect demolition of the then existing structures on 29.1.1993 in a high-handed and illegal manner. It had been further contended by him that such a demolition was resorted to by the aforementioned junior engineer of the 1st respondent-Corporation, at the instigation of the officials of the 2nd respondent-BDA against which an interim order against demolition, passed in O.S. No.413/1993 mentioned above had been operating. He had, therefore, prayed for a decree of permanent injunction and also for a mandatory injunction against interference with the peaceful possession and enjoyment of the lands in question and also for restoration of the structures which have stood illegally demolished.

In W.P. No.4979/2010 (LB) that the petitioners had filed in the Hon'ble High Court of Karnataka at Bangalore on 15.2.2010 they had prayed for the issuance of a writ in the nature of a mandamus against the respondents that they should restore the structures on the lands bearing Survey No. 33/2B, 33/3, 33/4 and 33/5, since the structures which were then existing thereon have been highhandedly demolished and that once such a restoration was done the respondents be restrained from interfering with the petitioners right to and possession of the said properties in any manner. Incidental and ancillary reliefs had also been prayed for in the said petition. The said petition having been entertained by a learned single judge of the Hon'ble High Court, notice thereof had been ordered to be issued to the respondents who, contended that no direction as had been prayed for by the petitioners could be issued even to consider the petitioners representations and that according to the 1st respondent proceedings for acquiring the lands in question alongwith the other lands had been initiated somewhere around the year 1970. It was in substance thus their contention, that the petition was belated. The fact that original suit No.413/1993 filed against the 2nd respondent having been dismissed on 5.2.2007, the petitioners have filed a Regular First Appeal against the same in R.F.A. No.1213/2007 before the Hon'ble High Court of Karnataka was also brought to the notice of the Hon'ble High Court. Even the identity of the lands was disputed by the 1st respondent. The 2nd respondent on the other hand contended that for forming BSK 2nd stage Residential Layout the lands in question had been statedly acquired that the development work was completed and that the Layout formed and sites allotted to the respective

applicants who had applied to the said respondents for such an allotment.

The learned single judge having dismissed the writ petition holding that in the Regular First Appeal mentioned above no interim order has since been passed in favour of the petitioners herein, the question of issuing any direction to the 1st respondent to consider the three representations of the petitioners would not arise particularly because no such prayer was made in the writ petition. Holding so, the writ petitions stood dismissed. Aggrieved by the same the petitioners had filed an intra-court appeal under Section 4 of the Karnataka High Court Act, 1961 praying for setting aside the order of the learned single judge and granting the reliefs prayed for in the said petition. The said appeal has also been summarily rejected by a Division Bench of the Hon'ble High Court. Hence, aggrieved by the dismissal of the writ petition and the summary rejection of the writ appeal the petitioners respectfully crave the kind leave of this Hon'ble Court to appeal therefrom.

**LIST OF DATES**:

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| 6.1.1969 | A registered Partition Deed was entered into between the predecessors of the petitioners and the other co-owners of the then existing Hindu Joint Family. A true copy of the said Partition Deed is produced herewith as **ANNEXURE-P-1.** |

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| 30.7.1972 | Chengaiah – father-in-law of the 1st petitioner and the paternal grand-father of the 2nd petitioner, died. |
| 4.1.1993 | The then Deputy Mayor of the City of Bangalore addressed a letter to the 2nd respondent. |
| 29.1.1993 | The officers of the 1st respondent highhandedly effected demolition of the superstructures that had been existing on the lands in question, eventhough the interim temporary injunction that had been passed in O.S. No.413/1993 by the Court of the learned City Civil Judge, Bangalore, had been continuously operating against the 2nd respondent-BDA. |
| 30.1.1993 | Without brooking even a single day's delay in the matter late B.C. Subramanya – husband of the 1st petitioner and the father of the 2nd petitioner filed an Original Suit in O.S. No.777/1993 in the court of the learned 15th Additional City Civil Judge, Bangalore, for a permanent prohibitory injunction against the 1st respondent herein. |
| 2.1.1994 | Yet another letter was addressed by the Deputy Mayor of the 1st respondent to the 2nd respondent-BDA. |

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| 7.2.1994/ 17.2.1994 | With reference to the aforementioned letters dated 4.1.1993 and 2.1.1994 of the then Deputy Mayor of the 1st respondent-Corporation, the 2nd respondent put up a note to the effect that the lands in question have not been acquired. |
| 29.7.1995 | O.S. No.777/1993 was decreed in favour of B.C. Subramanya (since deceased). |
| 16.8.1995 | The consequential decree was drawn up by the Registry of the Court. |
| 16.2.1996 | B.C. Subramanya – the decree holder demised. |
| 5.2.2007 | O.S. No.413/19993 was dismissed, from which a Regular First Appeal in R.F.A. No.1213/2007 has been filed by the petitioners herein as the legal representatives of the deceased B.C. Subramanya. |
| 2.1.2009 | A communication was addressed to the 1st respondent with copies thereof to others. A copy of the said communication is produced herewith as **ANNEXURE-P-2.** |
| 3.2.2009 | The office of the Chief Minister of the State addressed a letter to the Joint Director (S), BBMP to consider the representations of the |

petitioners. A true copy of the said letter is filed herewith as **ANNEXURE-P-3.**

29.4.2009 The petitioners sent a reminder with reference to the communication dated 2.1.2009. A true copy of the same is filed herewith as **ANNEXURE-P4**

15.2.2010 Since there was no response to the communications so addressed and no action was taken even on the letter of the Hon'ble Chief Minister, the petitioners filed a writ petition in W.P. No.4979/2010 for issuance of a writ in the nature of a mandamus that the superstructures which have been illegally demolished by the officials of the 1st respondent be restored that and posterior thereto the respondents be restrained from interfering with the petitioners peaceful possession and enjoyment of the said properties of the petitioners. A true copy of the memorandum of writ petition is filed herewith as **ANNEXURE-P-5**

15.3.2010 A learned single judge of the Hon'ble High Court of Karnataka, Bangalore, dismissed the aforementioned writ petition. A copy of the same is produced herewith as **ANNEXURE-P-6.**

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| 24.5.2010 | Aggrieved by the dismissal of the writ petition, the petitioners filed an intra-court writ appeal in W.A. No.1977/2010 (KLR-RR-SUR). A true copy of the memorandum of writ appeal is filed herewith as **ANNEXURE-P7**. |
| 19.11.2011 | The aforementioned writ appeal has stood summarily rejected. |
| .5.2011 | Aggrieved by the judgment dated 19.11.2010 this Special Leave Petition is filed with an application separately filed praying for condonation of the delay in filing this Special Leave Petition. |

**IN THE SUPREME COURT OF INDIA AT NEW DELHI**

**(Order XVI Rule 4(1)(a) of the Supreme Court Rules)**

**CIVIL APPRELLATE JURISDICTION**

**SPECIAL LEAVE PETITION**

**(Under Article 136 of the Constitution of India)**

**WITH PRAYER FOR INTERIM RELIEF**

**Special Leave Petition (Civil) No._____/2011**

**POSITIONS OF PARTIES**

| **In the High Court** | **In this Court** |
|---|---|

In the matter of :-

1. Smt. N. Manjula,
age 51 years
wife of late B.C. Subramanyam,
residing at Door No.282,
14th Cross, Chenngaya Layout,
Thyagarajanagar, Bangalore – 560 028

2. Kum. Ranjitha,
age 23 years
D/o. late B.C. Subramanyam,
residing at Door No.282,
14th Cross, Chenngaya Layout,
Thyagarajanagar,
Bangalore – 560 028

**And:**

1. The Bruhath Bangalore Mahanagara
Palika, Corporation Offices,
J.C. Road,Bangalore- 560 002,
represented by its Commissioner

2. The Bangalore Development Authority,
Chowdaiah Road, Kumarapark West,
Bangalore – 560 020, represented
by its Commissioner.

To,

THE HON'BLE CHIEF JUSTICE OF INDIA AND HIS OTHER, COMPANION JUDGES OF THE SUPREME COURT OF INDIA, NEW DELHI

THE HUMBLE PETITION OF THE PETITIONER ABOVE NAMED

The Special Leave Petition of the Petitioner:

**MOST RESPECTFULLY SHOWETH:**

1. That the petitioners above named respectfully submit this Special Leave Petition under Article 136 of the Constitution of India for grant of Special Leave to Appeal against the Judgment dated 19.11.2010 passed by a Division Bench of the Hon'ble High Court of Karnataka, Bangalore in W.A.. No.1977/2010 (KLR-RR/SUR) on its file, whereby the said appeal filed by the petitioners herein has been summarily dismissed/rejected.

2. **QUESTIONS OF LAW**:

That this petition raises the following substantial and important questions of law, for grant of Special Leave to Appeal.

a. Whether in the facts and circumstances of the case and in the wake of the judgment inter vivos rendered against the 1st respondent, in O.S. No. 777/1993 on the file of the learned 15th Additional City Civil Judge, Bangalore, holding that the material placed on record by the plaintiff therein, would demonstrate that he had proved his ownership and lawful possession of the property claimed by him measuring 17 guntas in extent (equivalent to 260 x 18 feet) and that despite the continued operation of the interim order of temporary injunction that had been passed in the earlier original suit No.419/1993 the superstructures then existing on the property in question have been illegally demolished in a high-handed manner, is it imperative that the petitioners have over again to approach a civil court for the reliefs that they had prayed for in the writ petition from which this Special Leave Petition has arisen?

b. Whether in the wake of the specific findings recorded in the judgment dated 29.7.1995 that B.C. Subramanya the deceased husband of the 1st petitioner and the father of the 2nd petitioner has proved his lawful ownership and possession of the property in question and also that he has proved that the 1st respondent has illegally demolished the then existing structures on the said property and that therefore a mandatory injunction was appropriate and has been granted in favour of the predecessors of the petitioners, the petitioners have over again to approach the civil court for redressal of injury that has been inflicted on them by the 1st respondent?

c. Whether the High Court is justified in holding that the petitioners have not established their case when the material on record in the form of the judgment dated 29.7.1995 was a part of

the record of the case in the writ proceedings clearly established their case that they are the lawful owners of the properties in question; that there was an order of temporary injunction that was operating in their favour against any demolition of the then existing structures on the properties in question, and that even in the wake of such an order the officials of the 1st respondent-Corporation have effected demolition of the said structures, by taking the law into their own hands and also ignoring with impugnity the judicial interim interdict of the Civil Court at Bangalore?

d. Whether, in the wake of the mandatory injunction that has been ordered in the aforementioned suit, which mandate has been operating against the 1st respondent is it still necessary for the petitioners to over again approach a civil court for the reliefs of restoration of the structures which have been high-handedly demolished by the officers of the 1st respondent?

e. Whether in the facts and circumstances of the case the remedy of a civil suit is not only long-prolix, time consuming prohibitively expensive and dilatory and therefore the petitioners were justified in invoking the extra-ordinary jurisdiction of the Hon'ble High Court of Karnataka in its writ jurisdiction of the Hon'ble High Court of Karnataka in its writ jurisdiction under Article 226 of the Constitution of India?

f. Whether, in the facts and circumstances of the case the Hon'ble High Court is justified in not granting the reliefs that the petitioners had prayed for in the writ petition, and in holding that the petitioners have to avail the ordinary remedy of a civil suit or

execution of the decree that has been passed in O.S. No. 777/1993 ?

g. Whether mere existence of any ordinary alternative remedy, in a given situation a total bar for the writ court exercising its jurisdiction under Article 226 of the Constitution of India?

h. Whether or not the respondents were estopped from contesting the writ petition from which the present Special Leave Petition has arisen, particularly in the wake of the incontrovertible fact that even according to them neither have the lands in question been acquired by the 2nd respondent nor is it deniable that the 1st respondent has high-handedly demolished the superstructure that had been built on the said property and such a demolition has been effected by the 1st respondent even during the continued operation of an order of temporary injunction that was operating against the 2nd respondent and its agents, servants etc?

3. **DECLARATION IN TERMS OF RULE 4(2) :-**

The petitioners state that no other petition seeking leave to appeal has been filed by either of them against the judgment questioned in this Special Leave Petition, previously.

4. **DECLARATION IN TERMS OF RULE 6** :-

The Annexures P1 to P7 produced with the Special Leave Petition are all true copies of the documents which formed part of the records of the case in the High Court from the judgment of which court the present Special Leave Petition has arisen.

5. **GROUNDS** :-

Leave to appeal is against the judgment dated 19.11.2010, on the following grounds.

I. In the facts and circumstances of the case in the wake of and the judgment ***inter vivos*** rendered against the 1st respondent, in O.S. No. 777/1993 on the file of the learned 15th Additional City Civil Judge, Bangalore, holding that the material placed on record by the plaintiff therein, would demonstrate that he had proved his ownership and lawful possession of the property claimed by him measuring 17 guntas in extent equivalent to 260 x 18 feet and that despite the continued operation of the interim order of temporary injunction that had been passed in the earlier original suit No.419/1993 the superstructures which were then existing on the property in question have been illegally demolished in a high-handed manner, it is not it imperative that the petitioners have over again to approach any civil court for the reliefs that they had prayed for in the writ petition from which this Special Leave Petition has arisen?

II. In the wake of the specific findings recorded in the judgment dated 29.7.1995 that B.C. Subramanya the deceased husband of the 1st petitioner and the father of the 2nd petitioner has proved his lawful ownership and possession of the property in question and also that he has proved that the 1st respondent has illegally demolished the then existing structures on the said property and that therefore a mandatory injunction was appropriate and has been granted in favour of the predecessors of the petitioners, the petitioners have over again to approach the civil court for

redressal of injury that has been inflicted on them by the 1st respondent.

III. The High Court is not right justified in holding that the petitioners have not established their case when the material on records in the form of the judgment dated 29.7.1995 was a part of the record of the case in the writ proceedings which clearly established their case that they are the lawful owners of the suit schedule property; that there was an order of temporary injunction that was operating in their favour against any demolition of the then existing structures on the properties in question and that even in the wake of such an order the officials of the 1st respondent-Corporation have effected demolition of the said structures, by taking the law into their own hands and also ignoring with impugnity the judicial interim interdict of the Civil Court at Bangalore. Failure to exercise its writ jurisdiction has resulted in a negation of justice to the petitioners.

IV. In the wake of the mandatory injunction that has been ordered in the aforementioned suit, which mandate had been operating against the 1st respondent it is wholly unjust to drive them over again to approach a civil court for the relief of restoration of the structures which have been high-handedly demolished by the officers of the 1st respondent.

V. In the facts and circumstances of the case the remedy of a civil suit is not only long-prolix, time-consuming prohibitively expensive and dilatory but also is no effective, alternative to the writ remedy and therefore the petitioners were justified in invoking the extra-ordinary jurisdiction under Article 226 of the Constitution of India.

VI. In the facts and circumstances of the case the Hon'ble High Court is not justified in not granting the reliefs that the petitioners had prayed for in the writ petition, and in holding that the petitioners have to avail the ordinary remedy of a civil suit or execution of the decree that has been passed in O.S. No. 777/1993.

VII Mere existence of any ordinary alternate remedy in a given situation is not a total bar for the writ court exercising its jurisdiction under Article 226 of the Constitution of India.

VIII. The respondents were estopped from contesting the writ petition from which the present Special Leave Petition has arisen, particularly, in the wake of the incontrovertible fact that even according to them neither have the lands in question been acquired by the 2nd respondent nor is it deniable that the 1st respondent has high-handedly demolished the superstructures that had been built on the said property and such a demolition has been effected by the 1st respondent even during the continued operation of an order of temporary injunction that was operating against the 2nd respondent and its agents, servants etc.

IX. The failure of the Hon'ble Court to exercise its writ jurisdiction, in the facts and circumstances of the present case has occasioned to the petitioners a total negation of justice and also a deprivation of their valuable property.

6. **MAIN PRAYER** :-

It is, therefore, most respectfully prayed that this Hon'ble Court graciously be pleased to :-

i) GRANT Special Leave to appeal from the impugned judgment dated 19.11.2010 passed by a Division Bench of the Hon'ble High Court of Karnataka, Bangalore in W.A. No. 1977/2010 on its file;

and

ii) PASS such other or further orders as this Hon'ble Court may deem just and proper in the facts and circumstances of the case, including the award of the costs of the proceedings althrough, and in the interest of justice and equity.

New Delhi
Date:

Advocate for the Petitioners

**IN THE SUPREME COURT OF INDIA**

**CIVIL APPELLATE JURISDICTION**

**SPECIAL LEAVE PETITION (CIVIL) No. OF 2011**

IN THE MATTER OF:

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